

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2026CUCO059243: ALAR MIKK, et al. vs ROBERT OBREITER, et al.
07/13/2026 in Department 20
Demurrer**

The morning calendar in courtroom 20 will normally begin at 8:30 a.m. Please arrive for your hearing no later than 8:20 a.m. The door will be opened before the calendar is called.

For Zoom appearances, all counsel appearing by Zoom must follow the instructions and procedures for Courtroom 20 on the Ventura Superior Court website. IF YOU DO NOT DO SO, YOU WILL NOT BE PERMITTED TO APPEAR BY ZOOM AT THE HEARING.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling, you may email Courtroom20@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending an email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d), and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Defendant Montaire Community Homeowners' Association's ("MCHA") Demurrer to Plaintiffs' Complaint

Tentative:

1. MCHA's special demurrer to each of the First, Second, and Third Causes of Action of Plaintiffs' Complaint on grounds of uncertainty pursuant to Code of Civil Procedure section 430.10, subdivision (f) is OVERRULED.

2. MCHA's demurrer to the fourth cause of action on the ground of lack of standing pursuant to Code of Civil Procedure section 430.10, subdivisions (b) and (e) is OVERRULED. Sufficient facts have been alleged to show demand futility.

MCHA shall file its Answer to the Complaint on or before July 23, 2026.

Plaintiffs shall give notice.